

File No 22CL357339-910		STATE OF NORTH CAROLINA Wake _____ County In The General Court Of Justice District/Superior Court Division														
SEARCH WARRANT																
IN THE MATTER OF																
1. Verizon Wireless account records for cellular phone number(s) (919-413-5004)		To any officer with authority and jurisdiction to conduct the search authorized by this Search Warrant: I, the undersigned, find that there is probable cause to believe that the property and person described in the application on the reverse side and related to the commission of a crime is located as described in the application. You are commanded to search the premises, vehicle, person and other place or item described in the application for the property and person in question. If the property and/or person are found, make the seizure and keep the property subject to Court Order and process the person according to law. You are directed to execute this Search Warrant within forty-eight (48) hours from the time indicated on this Warrant and make due return to the Clerk of the Issuing Court. This Search Warrant is issued upon information furnished under oath or affirmation by the person(s) shown. A. Graham Shirley														
Name Of Applicant Detective Tiara Joyner Name Of Additional Affiant(s)		RETURN OF SERVICE I certify that this Search Warrant was received and executed as follows: <table style="width: 100%; border-collapse: collapse;"> <tr> <td style="width: 50%; border-bottom: 1px solid black;">Date Received 12-2-2022</td> <td style="width: 50%; border-bottom: 1px solid black;">Time Received 1420 ☐ AM ☒ PM</td> </tr> <tr> <td style="border-bottom: 1px solid black;">Date Executed 12-2-2022</td> <td style="border-bottom: 1px solid black;">Time Executed 2:20 ☐ AM ☒ PM</td> </tr> </table>		Date Received 12-2-2022	Time Received 1420 ☐ AM ☒ PM	Date Executed 12-2-2022	Time Executed 2:20 ☐ AM ☒ PM									
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☒ I made a search of <u>VERIZON WIRELESS ACCOUNT RECORDS FOR CELLULAR PHONE NUMBER(S) (919-413-5004)</u> _____ as commanded. ☒ I seized the items listed on the attached inventory. ☐ I did not seize any items. ☐ This Warrant WAS NOT executed within forty-eight (48) hours of the date and time of issuance and I hereby return it not executed.		<table style="width: 100%; border-collapse: collapse;"> <tr> <td style="width: 20%; border-bottom: 1px solid black;">Date Issued 12-2-22</td> <td style="width: 10%; border-bottom: 1px solid black;">Time Issued 1:20 ☐ AM ☒ PM</td> <td style="width: 40%; border-bottom: 1px solid black;">Name (type or print) A. Graham Shirley</td> <td style="width: 30%; border-bottom: 1px solid black;">Signature </td> </tr> <tr> <td colspan="4"> ☐ Deputy CSC ☐ Assistant CSC ☐ CSC ☐ Magistrate ☐ District Ct. Judge ☒ Superior Ct. Judge </td> </tr> </table> NOTE: When issuing a search warrant, the issuing official must retain a copy of the warrant and warrant application and must promptly file them with the clerk. G. S. 15A-245(b). This Search Warrant was delivered to me on the date and at the time shown below when the Office of the Clerk of Superior Court is closed for the transaction of business. By signing below, I certify that I will deliver this Search Warrant to the Office of the Clerk of Superior Court as soon as possible on the Clerk's next business day. <table style="width: 100%; border-collapse: collapse;"> <tr> <td style="width: 30%; border-bottom: 1px solid black;">Name Of Officer Making Return (type or print) T JOYNER</td> <td style="width: 10%; border-bottom: 1px solid black;">Date 12-2-22</td> <td style="width: 10%; border-bottom: 1px solid black;">Time 3:41 ☐ AM ☒ PM</td> <td style="width: 30%; border-bottom: 1px solid black;">Name Of Magistrate (type or print) Caroleyn D. Long</td> <td style="width: 20%; border-bottom: 1px solid black;">Signature Of Magistrate </td> </tr> </table>		Date Issued 12-2-22	Time Issued 1:20 ☐ AM ☒ PM	Name (type or print) A. Graham Shirley	Signature 	☐ Deputy CSC ☐ Assistant CSC ☐ CSC ☐ Magistrate ☐ District Ct. Judge ☒ Superior Ct. Judge				Name Of Officer Making Return (type or print) T JOYNER	Date 12-2-22	Time 3:41 ☐ AM ☒ PM	Name Of Magistrate (type or print) Caroleyn D. Long	Signature Of Magistrate
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Signature Of Officer Making Return Department Or Agency Of Officer CARY POLICE DEPT		Incident Number 22010648 Date 12/25/22 Time 3:41 ☐ AM ☒ PM Name Of Clerk (type or print) Caroleyn D. Long Signature Of Clerk ☒ Dep. CSC ☐ Asst. CSC ☐ CSC														

APPLICATION FOR SEARCH WARRANT

I, Tiara Joyner, Detective, Cary Police Department

(insert name and address, or if law enforcement officer, name, rank and agency)

being duly sworn, request that the Court issue a warrant to search the person, place, vehicle, and other items described in this application and to find and seize the property and person described in this application. There is probable cause to believe that *(Describe property to be seized; or if search warrant is to be used for searching a place to serve an arrest warrant or other process, name person to be arrested)* See attached.

constitutes evidence of a crime and the identity of a person participating in a crime, *(Name crime)* Taking Indecent Liberties with a Student NC GS 14-202.4(a)

and is located *(Check appropriate box(es) and fill in specified information)*

☐ in the following premises *(Give address and, if useful, describe premises)*

(and)

☐ on the following person(s) *(Give name(s) and, if useful, describe person(s))*

(and)

☐ in the following vehicle(s) *(Describe vehicle(s))*

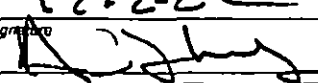
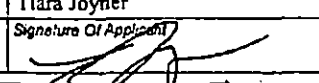
(and)

☒ *(Name and/or describe other places or items to be searched, if applicable)*

Verizon Wireless account records for cellular phone number(s) (919-413-5004)

The applicant swears or affirms to the following facts to establish probable cause for the issuance of a search warrant:

See Attached.

SWORN/AFFIRMED AND SUBSCRIBED TO BEFORE ME		Date <u>12/02/2022</u>
Date <u>12-2-22</u>	Name Of Applicant <i>(type or print)</i> <u>Tiara Joyner</u>	
Signature 	Signature Of Applicant 	
☐ Magistrate ☐ Dep. CSC ☐ Asst. CSC ☐ Clerk Of Superior Court ☒ Judge		

☐ In addition to the affidavit included above, this application is supported by additional affidavits, attached, made by _____

☐ In addition to the affidavit included above, this application is supported by sworn testimony, given by _____

This testimony has been *(check appropriate box)* ☐ reduced to writing

☐ recorded, and I have filed any such writing/recording with the clerk.

NOTE: *If more space is needed for any section, continue the statement on an attached sheet of paper with a notation saying "see attachment." Date the continuation and include on it the signatures of applicant and issuing official*

PROBABLE CAUSE AFFIDAVIT

STATE OF NORTH CAROLINA
COUNTY OF WAKE

AFFIDAVIT

CONTINUATION OF SEARCH WARRANT APPLICATION IN THE MATTER OF: Verizon Wireless account records for cellular phone number(s) (919-413-5004)

SECTION I: DESCRIPTION OF PROPERTY TO BE SEIZED

1. All Call Detail Records, SMS Records, MMS Records, and Data Records, to include all related Cell Site Data for each respective telephone number the time period from 12:00 a.m. on September 1, 2022 and ending at 12:00 a.m. December 1, 2022 pursuant to 18 USC 2703 (d).
2. All Location information including estimated or known locations, commonly referred to as an RTT (Round Trip Timing), EVDO, ALUL TE, and Icdort report Data for each respective telephone number the time period from 12:00 a.m. on September 1, 2022 and ending at 12:00 a.m. December 1, 2022 pursuant to 18 USC 2703 (d).
3. All text and picture messages (content) currently available. Live and deleted contact lists, call logs, text messages and multimedia messages (SMS and MMS messages), e-mails, chats, video conference communication data, contact information, installed application information including their content and any other information which can be used to identify potentially associated persons; for each respective telephone number the time period from 12:00 a.m. on November 24, 2022 and ending at 12:00 a.m. December 1, 2022 pursuant to the attached Preservation Request sent and according to 18 USC 2703 (d).
4. Live and deleted documents, programs, pictures, videos, audio files, text files, databases, application data, calendar entries, user dictionaries, malware, viruses, tracking or other remote monitoring software, and any associated metadata;
5. Any information on file in reference to the current subscriber, to include billing information, activation information, and device information. Live and deleted user attribution data including, but not limited to, user accounts, e-mail accounts, passwords, PIN codes, patterns, account names, user names, screen names, remote data storage accounts, documents, files, metadata, or any other information and evidence that may demonstrate attribution to a particular user or users;
6. Any document, files, or media currently in the possession of Verizon; Attn: VSAT in reference to the above listed customer number(s).

SECTION II: NAME OF CRIMES

SECTION III: DESCRIPTION OF PROPERTY TO BE SEARCHED

1. Verizon Wireless account records for cellular phone number(s) (919-413-5004)

 12/2/22
✓ Superior Court Judge Date
____ District Court Judge
____ Wake County Magistrate

 12-02-2022
Affiant Date

Verizon Wireless account records for cellular phone number(s) (919-413-5004) – Cary Police OCA 22-010648

Items Seized Continued:

☐ 1. I left a copy of this inventory with the person named below, who is:

- ☐ a. the owner of the premises searched.
- ☐ b. the owner of the vehicle searched.
- ☐ c. the person in apparent control of the premises searched.
- ☐ d. the person in apparent control of the vehicle searched.
- ☐ e. the person from whom the items were taken.

☒ 2. As no person was present, I left a copy of this inventory:

- ☒ a. in the premises searched, identified on the reverse.
- ☐ b. in the vehicle searched, identified on the reverse.

Name And Address Of Person To Whom A Copy Of This Inventory Was Delivered, If Any

The law enforcement agency identified below will hold the seized property subject to court order.

SWORN/AFFIRMED AND SUBSCRIBED TO BEFORE ME		Name Of Law Enforcement Officer (type or print) Tiara Joyner
Date 12/12/22	Name (type or print) Carolyn D. Long	Signature Of Law Enforcement Officer 
☐ Notary	Signature Carolyn D. Long	Title Of Law Enforcement Officer Detective
SEAL	Date My Commission Expires	Name And Address Of Agency Cary Police Department 120 Wilkinson Ave Cary, NC 27513
	County Where Notarized	
☒ Deputy CSC ☐ Assistant CSC ☐ Clerk Of Superior Court ☐ Magistrate		

ACKNOWLEDGMENT OF RECEIPT

I, the undersigned, received a copy of this inventory.

Date	Signature Of Person Receiving Inventory
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